

POLITY 08 - ASCII MASTER - PANEL 1/12

PART IV CONSTITUTIONAL ARCHITECTURE AND ORIGIN

PART IV: DIRECTIVE PRINCIPLES OF STATE POLICY, ARTICLES 36-51

ORIGIN -> Irish Constitution of 1937; Irish model had a Spanish antecedent

INDIAN DESIGN -> Ambedkar's 1935 Instrument-of-Instructions analogy,
now addressed to elected legislatures and executives

ARTICLE 36 -> State has the Part III / Article 12 meaning

ARTICLE 37 -> not enforceable by courts

-> fundamental in governance

-> State duty to apply in making laws

CORE RULE: non-justiciable != optional; constitutional duty != automatic writ remedy.

ARTICLE 38

- 38(1) welfare through social, economic and political justice
- 38(2) minimise inequalities: income + status + facilities + opportunities

ARTICLE 39

- (a) adequate livelihood for citizens, men and women equally
- (b) material resources distributed to subserve common good
- (c) no concentration of wealth/means of production to common detriment
- (d) equal pay for equal work for men and women
- (e) worker/child health protected; no unsuitable avocation from economic need
- (f) childhood in freedom/dignity; protection from exploitation/abandonment

TRAP: 39(b) distribution and 39(c) anti-concentration are related, not identical.

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ARTICLES 39A-43B: INSTITUTIONS, WORK AND DEMOCRATIC ECONOMY

- 39A -> equal justice + free legal aid
- 40 -> village panchayats as units of self-government
- 41 -> work, education and public assistance
 - EXPRESS LIMIT: within economic capacity and development
- 42 -> just/humane work conditions + maternity relief
- 43 -> living wage + decent life + leisure/culture + rural cottage industries
- 43A -> worker participation in industrial management
- 43B -> voluntary formation + autonomy + democratic control
 - + professional management of co-operative societies

CLOSE PAIR: 43 worker welfare/cottage economy | 43A participation | 43B co-operatives.

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ARTICLES 44-51: REFORM, CAPABILITY, ECOLOGY AND PEACE

- 44 -> State endeavour for a Uniform Civil Code for citizens throughout India
- 45 -> early childhood care and education until completion of six years
- 46 -> weaker sections, especially SC/ST; education/economy + anti-exploitation
- 47 -> nutrition + living standard + public health; qualified prohibition direction
- 48 -> scientific agriculture/animal husbandry + cattle protection
- 48A -> environment + forests + wildlife
- 49 -> nationally important monument/place/object declared by/under Parliamentary law
- 50 -> separate judiciary from executive in State public services
- 51 -> (a) peace/security (b) just/honourable relations
(c) respect international law/treaties (d) arbitration

TRAP: Article 51(c) is not automatic domestic incorporation of every treaty.

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CLASSIFICATION AND DIRECT PART IV AMENDMENTS

TEXTBOOK CLASSIFICATION - NOT CONSTITUTIONAL LABELS

SOCIALISTIC -> 38, 39, 39A, 41, 42, 43, 43A, 47

GANDHIAN -> 40, 43, 43B, 46, 47, 48

LIBERAL-INTELLECTUAL -> 44, 45, 48, 48A, 49, 50, 51

OVERLAPS -> 43, 46, 47 and 48

DIRECT PART IV CHANGE

42nd (1976) -> 39(f) recast; 39A, 43A, 48A inserted

44th (1978) -> 38(2) inserted

86th (2002) -> Article 21A inserted; Article 45 recast below six

97th (2011) -> Article 43B inserted

EXAM RULE: exact Article first; category second.

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FR-DPSP PHASES AND AMENDMENT RESPONSE

1951 CHAMPAKAM -> FR prevails in direct conflict; First Amendment response
1951 FIRST -> 15(4), 31A and 31B accommodation
1955 FOURTH -> strengthened land-reform/property protection architecture
1967 GOLAKNATH -> Parliament cannot abridge FR by amendment
1971 24TH -> amendment power affirmed
1971 25TH -> Article 31C for 39(b)/(c)
1973 KESAVANANDA -> amendment subject to basic structure;
 31C shield survives, review-ouster fails
1976 42ND -> attempted extension of 31C to all DPSPs
1980 MINERVA MILLS -> extension invalid; Part III-IV harmony is basic structure

CURRENT DOCTRINE: harmony/balance, not permanent absolute supremacy of either Part.

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ARTICLE 31C AFTER PROPERTY OWNERS ASSOCIATION (2024)

STEP 1 -> Does the law genuinely implement Article 39(b) or 39(c)?
STEP 2 -> Is there a real and substantial nexus?
STEP 3 -> For 39(b), is the material resource 'of the community' contextually?
STEP 4 -> Does distribution subserve common good?
STEP 5 -> Apply shield against Articles 14 and 19
STEP 6 -> Preserve judicial review and basic-structure limits

PROPERTY OWNERS ASSOCIATION, 5 NOV 2024

- some privately owned resources may qualify
- not every private asset qualifies automatically
- relevant context includes nature, scarcity, community impact and concentration

TRAP: welfare recital != conclusive 31C protection.

DPSP TEXT

- > legislative competence
- > law and appropriation
- > rules, institutions and front-line capacity
- > grievance correction and judicial legality review
- > audit, legislative scrutiny, opposition, civil society and elections
- > measurable outcomes

USES

- legislature -> constitutional purpose for law
- executive -> policy priorities and administration
- judiciary -> rights/statute interpretation within institutional limits
- politics -> manifesto, budget and electoral accountability

LIMIT: a scheme or statute is an implementation vehicle, not proof of universal fulfilment.

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NAMED IMPLEMENTATION EXAMPLES WITH HONEST LIMITS

38/39 -> land reform + Articles 31A/31B | basic-structure review remains
39A -> Legal Services Authorities Act 1987 + NALSA | quality/awareness gaps
40 -> 73rd Amendment / Part IX | devolution depends on funds-functions-functionaries
41/45 -> Article 21A + RTE Act 2009 | below-six Article 45 remains; outcome gaps
42/43 -> maternity, wage and labour legislation | informality/enforcement limits
47 -> nutrition/public-health/prohibition laws | capacity and liberty trade-offs
48A -> environmental statutes | compliance and enforcement gaps
49 -> AMASR Act 1958 / ASI | conservation-development tension
50 -> judicial-executive separation reforms | capacity questions
51 -> treaty practice/arbitration legislation | no automatic self-execution

RULE: named evidence -> what it proves -> honest limitation.

ARTICLE 39A -> EQUAL JUSTICE + FREE LEGAL AID

Article 21 link -> M.H. Hoskot; Hussainara Khatoon

statute -> Legal Services Authorities Act 1987

chain -> NALSA -> SLISA / court committees -> DLSA -> Taluk committee

section 12 -> category or prescribed-income eligibility

section 13 -> authority satisfied about prima-facie case

ORDINARY LOK ADALAT

settlement/consent only; no merits adjudication after failure

award deemed decree, final/binding, no appeal

PERMANENT LOK ADALAT

pre-litigation public-utility dispute; conciliation first

bounded merits decision after failure, if dispute does not relate to an offence.

ARTICLE 44

direction -> State shall endeavour; citizens; throughout India

field -> Concurrent List Entry 5

design -> equality/dignity + religion/pluralism + competence + transition

courts -> decide concrete disputes; observations do not enact a UCC

routes -> targeted reform | community codification | secular option | common code

OUTSIDE-PART-IV STUDY DIRECTIONS

Article 335 -> SC/ST service claims consistently with efficiency

Article 350A -> primary mother-tongue facilities for linguistic minorities

Article 351 -> Union duty to develop/spread Hindi

BOUNDARY: only Articles 36-51 are Part IV DPSPs; detailed FR is Topic 7,
Duties Topic 9 and amendment doctrine Topic 10.

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CRITICISM, TRAPS, PYQS AND ANSWER SPINE

CRITICISM -> no remedy | vague arrangement | resource dependence
| federal friction | judicial competence | symbolic compliance
RESPONSE -> Article 37 duty | institutional conversion | interpretation
| budgets/audit | elections | measurable outcomes

PYQ RAIL

2020 -> Article 50; UDHR reflection; legal-aid eligibility;
welfare State; Article 37 enforceability/law-making
2021 -> Article 39(c) concentration
2023 GS-II -> entitlement to free legal aid + role of NALSA
2025 -> Part matching; held final local-official key C

ANSWER SPINE

thesis -> exact Article -> amendment/case/law -> mechanism -> named evidence
-> rights/federal/fiscal qualification -> graded conclusion

VERDICT: constitutional compass and governance duty, not a self-executing delivery guarantee.